

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Death Reference No.10 OF 2018

The State

... Petitioner

-Versus-

(1) Md. Mahfuzul Islam

(2) Md. Billal Hossain

...Condemned-prisoners

with

Criminal Appeal No.2770 OF 2018

Md. Mahfuzul Islam & another

.....Convict-appellants

-Versus-

The State

... Respondent

Mr. Md. Abu Hanif, Advocate

...for the convict-appellants Md.

Mahfuzur Islam and Md. Billal Hossain.

With

Jail Appeal No.63 of 2018

Md. Mahfuzul Islam

Versus

The State

.....Respondent

Ms. Hasna Begum, Advocate

.....For the Convict appellant Md. Mahfuzul
Islam in Jail Appeal No.63 of 2018.

With
Jail Appeal No.75 of 2018

Md. Billal Hossain

Versus

The State

.....Respondent

Ms. Nazmun Nahar, Advocate

.....For the Convict appellant Md. Billal Hossain
 in Jail Appeal No.75 of 2018.

Mr. Sujit Chatterjee, DAG with

Ms. Farhana Afroze Runa, A. A. G with

Mr. Abdul Aziz Masud, A. A. G. with

Mr.Md. Shamim Khan, A. A. G

... For the State.

**Heard on: 25.01.2024 & 01.02.2024 and Judgment
 on 08.02.2024 & 15.02.2024.**

S M Kuddus Zaman,J:

This Death Reference under section 374 of the Code of Criminal Procedure, 1889 (hereinafter referred to as the Code) has been submitted by the learned Additional Session Judge, 1st Court, Narayangonj for confirmation of the sentence of death passed on 29.01.2018 against two accused, namely, Md. Mahfuzul Islam and Md. Billal Hossain in Session Case No.1750 of 2015 under sections 302/201/34 of the Penal Code,

1860 arising out of Araihasar Police Station Case No.15(5) 2015 corresponding to G. R. Case No.73 of 2015.

Being aggrieved by above judgment and order of conviction and sentence dated 29.01.2018 passed by the learned Additional Sessions Judge, 1st Court, Narayangonj in Sessions Case No.1750 of 2015 under section 302/201/34 of the Penal Code, 1860 above mentioned condemned accuseds, namely, Md. Mahfuzul Islam and Md. Billal Hossain preferred Criminal Appeal No.2770 of 2018, Jail Appeal No.63 of 2018 and Jail Appeal No.75 of 2018.

Above Death Reference, Criminal Appeal and Jail Appeals having arisen out of the same judgment and order of conviction and sentence dated 29.01.2018 passed by the learned Additional Session Judge, 1st Court, Narayangonj in Session Case No.1750 of 2015 and involved identical questions of laws and facts above Death Reference, Criminal Appeal and Jail appeals are heard together and being disposed of by this single judgment.

Facts in short are that P.W.1 Kazi Md. Nasir Uddin the father of victim Maksudul Islam Tuhin (hereinafter referred to

as Tuhin) lodged an ejahar on 12.05.2015 at 0.45 hours stating that his minor son victim Maksudul Islam (Tuhin) a student of class two of BRAC KG School was kidnapped on 09.05.2015 at 17.50 hours while he was playing near the Eidga by two unknown persons boarding a white color microbus. On 10.05.2015 at 7.30 AM an unknown person using mobile phone No.01718171502 demanded a ransom of Tk.20,00,000/- (twenty lac) to him for release of his son. At about 10.12 hours from above phone number the informant was told that since he had informed police about the kidnapping of his son he would not get him alive and his nephew Mahfuzul (17) had also been kidnapped.

P.W.12 Tanvir arrested accused Md. Mahfuzul Islam and produced him before a Judicial Magistrate for recording his confession under section 164 of the Code of Criminal Procedure and recorded statements of prosecution witnesses under section 161 of the Code of Criminal Procedure. Pursuant to above confession and at the showing of accused Mahfuzul Islam the dead body of victim Tuhin was retrieved

from inside a covered drum from the dwelling ghor of above accused persons.

At trial prosecution examined 12 witnesses who were cross examined by the defence. Documents produced and proved by the prosecution were marked as Exhibit Nos.1series, 2 series, 3 series, 4 series, 5 series, 6 series, 7 series, 8 series, 9 series, 10 series and 11 series and materials Exhibit Nos.I-II respectively.

The defence case as it transpires from the trend of cross examination of the prosecution witnesses and the statement of the accused persons made under section 342 of the Code of Criminal Procedure is that they were innocent and falsely implicated in this case.

On consideration of above facts and circumstances of the case, evidence on record and the submissions made by the learned Advocates for the respective parties the learned Additional Session Judge convicted accused Md. Mahfuzul Islam and his father co-accused Md. Billal Hossain under section 302/34 of the Penal Code, 1860 and sentenced both of them to death. The learned Additional Sessions Judge further

convicted accused Md. Mahfuzul Islam and Billal Hossain under section 201 of the Penal Code, 1860 and sentenced each of them to rigorous imprisonment for 03 (three) years and fine of Tk.50,000/- or in default rigorous imprisonment for 06 (six) months more.

To bring home the charge levelled against accused Md. Mahfuzul Islam and Md. Billal Hossain under section 302/201/34 of the Penal Code, 1860 the prosecution has examined 12 (twelve) witnesses.

P.W.1 Kazi Md. Nasir Uddin is the informant of this case and father of victim Tuhin. He stated that victim Tuhin was of seven years of age and a student of class two of BRAC Kg School. On 09.05.2015 at 4.20 PM accused Mahfuzul was picking mango from the tree and victim Tuhin was collecting above mango. Accuse Billal Hossain was working in the courtyard. At 5.50 PM his wife started looking for her son victim Tuhin but he was unavailable. Accused Billal Hossain and his son Mahfuzul Islam left their dwelling home. He asked accused Mahfuzul about the where about of victim Tuhin who replied that Tuhin went towards Eidga

accompanying Atik. He went to the Eidga and searched for his son Tuhin but he could not locate him. The people of the village, relatives, accused Billal and Mahfuzul also joined him in the search to find out victim Tuhin. In the night accused Billal and Mahfuzul stated that two unknown persons boarding a white color microbus kidnapped victim Tuhin from the Eidga. On 10.05.2015 at 7.30 an unknown person gave him a mobile phone call from number 01718171502 and demanded ransom of Tk.20,00,000/- (twenty lac) for release of his son. He informed about matter to the officer police and in the following night the same person told him over above phone that since he informed police he would not get his son alive and they had kidnapped his nephew accused Mahfuzul. The witness proved the ejahar and his signature on the same which were marked as Exhibit Nos.1 and 1/1 respectively. On 12.05.2015 at 7-7.30 AM his neighbors Hobi, Nazim, Delwar, Jahanara, Anowar and others came to him and stated that bad odour was coming out of the dwelling ghor of accused Billal. He and above persons asked Billal about the cause of bad smell who stated that some insects might have died and he

denied their entry into his dwelling ghor. On 12.05.2015 he again received a phone call from above number demanding ransom and police arrested accused Mahfuzul by tracking above mobile phone from Balushair Aglapara of Narsingdi. Accused Mahfuzul confessed to have committed murder of victim Tuhin by strangulation with the aid of his father accused Billal and kept his dead body inside a drum in their dwelling ghor. The dead body of victim Tuhin was recovered at the showing of accused Mahfuzul from above location. Police prepared inquest report of the dead body of victim Tuhin in his presence and forwarded the dead body for post mortem examination.

In cross examination he stated that accused Billal is his brother and both of them live in the same dwelling house in separate ghors. In the ejahar he did not mention that accused Billal and Mahfuzul disclosed to him about the kidnapping of his son. He and other villagers were present when accused Mahfuzul confessed to have committed above murder. At the time of murder of victim Tuhin the wife of accused Billal was not present in the occurrence house. He denied that accused

Billal was not involved in the murder of his son nor the dead body of his son was recovered at the showing of accused Mahfuzul or accused Mahfuzul was in the house of his maternal grandmother at the time of above occurrence.

P.W.2 Md. Nazim Miah stated that on 09.05.2015 hearing cries and alarms from the house of victim Tuhin he went there and heard that victim Tuhin was missing. He joined with other people of the locality to search for victim Tuhin but to no avail. On 12.05.2015 he noticed a bad odour was coming from the ghor of accused Billal. Asked Billal stated that rat might have died in his ghor. On 12.05.2015 police arrested accused Mahfuzul from Narsingdi and brought him to the occurrence ghor and at his showing recovered the dead body of victim Tuhin from inside a plastic drum. In cross examination he stated that the informant and accused persons reside in the same house. He denied that during 08.05.015 to 13.05.2015 accused Mahfuzul and his mother were not present in the occurrence house or the dead body of victim Tuhin was not recovered at the showing of accused Mahfuzul.

P.W.3 Anowar stated that on 09.05.2015 P.W.1 Nasir Uddin informed him that his son was missing. He came to the occurrence house and found accused Mahfuzul, Billal and other neighbours. They all searched to find out victim Tuhin but to no avail. In the night accused Billal disclosed that victim Tuhin was kidnapped by unknown two persons boarding a white colour microbus. On 12.05.2015 at 7-7.30 AM P.W.1 Nasir Uddin told him that an unknown person was demanding ransom of Tk.20,00,000/- over phone to release his son. He advised him to inform police. On 12.05.2015 at 7-7.30 AM bad odour was coming out from the ghor of accused Billal who stated that rat might have died in his ghor. Accused Billal did not allow their entry into his ghor. On 12.05.2015 after Magrib prayer police brought accused Mahfuzul to the occurrence ghor and at his showing the dead body of victim Tuhin was recovered from inside a drum. The neck of victim Tuhin was tied with a gamsa. Police seized above drum in his presence by a seizure list and he gave signature on the same as a witness. The witness proved above seizure list and his signature on the same and above drum which were marked as

Exhibit No.2 and 2/1 and Material Exhibit No.I respectively.

In cross examination he stated that the gamsa he mentioned in his evidence was present in the court today. He denied that accused Mahfuzul did not show the drum or the accused persons were not involved in above murder nor they were not present in the occurrence ghor during above murder.

P.W.4 Md. Habibur Rahman @ Hobi stated that police prepared inquest report of the dead body of victim Tuhin in his presence and he gave signature on the same as a witness. The witness proved his signature on the inquest report which was marked as Exhibit No.3/1. On 09.05.2015 he joined the informant and accused persons in the search to find out victim Tuhin but to no avail. He also heard that an unknown person demanded ransom of Tk.20,00,000/- to the informant for release of his son. Informant and accused Billal are two brothers and they lived in the same dwelling house in different ghors. Bad odour was coming from the ghor of accused Billal who stated that rats might have died in his ghor. On 12.05.2015 evening police brought accused Mahfuzul in the occurrence ghor and t the showing of accused Mahfuzul

the dead body of victim Tuhin was recovered from inside a drum. Accused Mahfuzul confessed to have murdered victim Tuhin and kept his dead body in above drum. In cross examination he stated that accused Billal and accused Mahfuzul lived in the same house.

P.W.5 Md. Delowar Hossain stated that on 09.05.2015 evening he went to the occurrence house and saw that the local people joined with the informant in the search to find out his son but to no avail. At 10-10.30 PM accused Billal stated that victim Tuhin was kidnapped by unknown kidnappers boarding a white colour microbus. On the next morning P.W.1 Nasir Uddin Stated that an unknown person demanded ransom of Tk.20,00,000/- over mobile telephone for release of victim Tuhin. On 12.05.2015 police brought accused Mahfuzul to the occurrence ghor who confessed to have murdered victim Tuhin and kept the dead body inside a drum. Accused Mahfuzul by opening above drum showed the dead body of victim Tuhin. On 12.05.2015 bad odour came from the house of accused Billal who stated that a rat might have died in his ghor and he obstructed their entry into his dwelling ghor. In

cross examination he denied that accused persons did not commit murder of victim Tuhin and he was giving false evidence and accused Mahfuzul was arrested from the house of his maternal grandfather.

P.W.6 Saifuzzaman Sarif @ Saifuzzaman was a Judicial Magistrate who recorded the confession of accused Mahfuzul on 13.05.2015 under section 164 of the Code of Criminal Procedure. He stated that he recorded above confession in accordance with the provision of section 364 of the Code of Criminal Procedure. The witness proved above confession of accused Mahfuzul and his signatures and the signatures of above accused in above confession which were marked as Exhibit Nos.4, 4/1 to 4/6 and 4(ka)(ummo) respectively.

Above confession of accused Mahfuzul Islam is produced below:

“ভিকটিম তুহিন (৭) আমার আপন চাচাতো ভাই। চাচার নাম কাজী নাসির উদ্দিন। আমার পরিবার এবং চাচার পরিবার একই বাড়ীতে পাশাপাশি বসবাস করি। আমার বাবা চাচার বড় ভাই হওয়া স্বত্বেও কারনে অকারনে চাচা বাবাকে জুলুম করতো। বিগত ৩/৪ মাস পূর্বে আমাদের গৃহপালিত গরুকে কেন্দ্র করে আমার চাচা বাশ দিয়ে মেরে আমার বাবার হাতের আগুল ভেঙ্গে দেয়। সেই থেকে চাচার প্রতি আমার ক্ষোভ জন্মে। ফলে চাচাকে শিক্ষা দেওয়ার

জন্য তার সন্তান ভিকটিম তুহিনকে খুন করার এবং চাচা থেকে টাকা আদায়ের জন্য মনস্থির করি। সেই মোতাবেক বিগত ০৭/০৫/২০১৫ইং মাদ্রাসা থেকে বাড়ী আসি এবং ঐ দিনই আমার বন্ধু তোফাজ্জল (১৬) পিং-অজ্ঞাত, সাং-আলগাপাড়া, নরসিংদী এর নিকট হইতে একটি মোবাইল সংগ্রহ করি এবং নতুন সিম ক্রয় করি। বন্ধু তোফাজ্জল আমার পরিকল্পনার কথা জানতো না। বিগত ০৯/০৫/২০১৫ইং বিকেল অনুমান ১৬.৪৫ মিনিট ভিকটিম তুহিনকে বাড়ীর উঠানে খেলতে দেখি। তখন আমার বাসায় কেউ ছিল না। তখন আমি তুহিনকে আমা ভর্তা খাওয়ার লোভ দেখিয়ে আমার শোবার কক্ষে নিয়ে আসি। উক্ত কক্ষের সকল জানালা এবং পিচনের দরজা আগে থেকেই বন্ধ ছিল। যাই হোক ভিকটিম তুহিনকে রুমে ঢুকিয়ে সাথে সাথে তার গলা দুই হাত দিয়ে চিপে ধরে তাকে মাটিতে শুইয়ে ফেলি। প্রায় $1\frac{1}{2}$ - ২.০০ মিনিট তার গলা চিপে ধরে ছিলাম। এরপর ভিকটিম তুহিন মারা যায়। এরপর তার মৃত্যু নিশ্চিত করার জন্য ভিকটিমের গলায় গামছা দিয়ে গিট দিয়ে উক্ত কক্ষে থাকা প্লাস্টিকের ড্রামে তুহিনের দেহ তার ড্রামের মুখ লাগিয়ে দেই। এরপর কক্ষের দরজায় তালা মেরে বাইরে যাই। মাগরিবের নামাজের পর বাড়ী এসে দেখি সবাই তুহিনকে খুজতেছে। তখন আমিও তুহিনকে খুজার ভান করি। রাত্র ১১.০০ টার পর বাসায় ঢুকে ঘুমিয়ে পড়ি। পরের দিন ভোরে ঘুমে থেকে উঠে ফজরের নামাজ আদায় করে স্থানীয় খৈয়া বাজারে যাই নতুন সিম ১০ টাকা ভরে চাচাকে ফোন দেই। আমি আমার পরিচয় গোপন করে তুহিনের মুক্তিপণ হিসেবে চাচার নিকট ২০,০০,০০০/- (বিশ লক্ষ) টাকা দাবি করি এবং ০৩ দিন সময় দেই। এরপর মোবাইলের লাইন কেটে দেই। এরপর আমি বাড়ী চলে আসি। সকাল ১১.০০ টার দিকে চাচা থানায় যায়। এটা দেখে আমি শেখের চর এক বন্ধুর বাড়ী যাই। রাত্রে সেখানেই ছিলাম, সেই রাত্রে অনুমান ১০.০০ টার দিকে চাচাকে পুনরায় ফোন করে জানাই যে, চাচা থানায় যাওয়ার কারনে তার ভতিজাকেও অপহরণ করিয়াছি এবং মুক্তিপণ প্রদানের সময়সীমা ০৩ দিনের কথা

মনে করিয়া দেই। পরের দিন সকালে ঐ বন্ধুর বাড়ীতে নাস্তা করে নরসিংদী জেলাস্থ আলগাপাড়ায় তোফাজ্জলের বাড়ীতে যাই। সেদিন রাত্রি সেখানে থাকি। পরের দিন অর্থাৎ ১২/০৫/২০১৫ইং সকাল ১১.০০.১২.০০ টার মধ্যে দুইবার চাচার মোবাইলে ফোন দেই। তখন দুইবাইর চাচী ধরে। যোহরের নামাজের পর পুনরায় ফোন করলে চাচা ফোন ধরে এবং তখন জানাই যে, মুক্তিপণ প্রদানের সময় শেষ এবং আজকের মধ্যে দাবীকৃত ২০,০০,০০০/- (বিশ লক্ষ) টাকা না দিলে ভিকটিম তুহিনকে মেরে ফেলব, পাচার করে দিব। এরপর লাইন কেটে দেই। অবশেষে আসরের ওয়াক্তের আগে অনুমান ১৬.০০ টায় পুলিশ আমাকে তোফাজ্জলের জেঠীর বাড়ী হইতে গ্রেফতার করে। এই আমার জবানবন্দী। উল্লেখ্য যে, আমার দেখানো মতে পুলিশ ভিকটিমের লাশ উদ্ধার করে।

In cross examination he stated that accused Mahfuzul was produced before him at 10.30 PM and he was given three hours time for refreshment of memory. In his confession accused Mahfuzul did not disclose the name of any other accused person. He denied that he did not record above confession of accused Mahfuzul properly.

P.W.7 Md. Kobir Hossain stated that on 09.05.2015 he went to the occurrence house and found many people assembled there and victim Tuhin was missing. He joined others in the search to find out victim Tuhin but to no avail. At 10.10.30 PM accused Billal disclosed that victim Tuhin had been kidnapped by two unknown persons boarding a white

colour microbus. On the next morning a phone call came to the informant demanding ransom of Tk.20,00,000/- for release of victim Tuhin. On 1.05.2015 bad odour was coming out from the ghor of accused Billal who told that a rat might have died and he obstructed their entry into his dwelling ghor. On 12.05.2015 afternoon police brought accused Mahfuzul to the occurrence ghor who showed a drum and disclosed that the dead body of victim Tuhin was kept inside above drum. Accused Mahfuzul opened above drum and the dead body of victim Tuhin was found. The neck of victim Tuhin was tied with a gamsa. Accused Mahfuzul confessed to have murdered victim Tuhin. In cross examination he denied that the accused persons did not commit the murder of victim Tuhin nor the dead body of victim Tuhin was recovered from the dwelling ghor of the accused persons.

P.W.8 Most. Jahanara stated that on 09.05.2015 the mother of victim Tuhin stated that victim Tuhin was missing. The informant, accused persons and other people of the locality started search to find out victim Tuhin but to no avail. Accused Billal disclosed that victim Tuhin was kidnapped

boarding a white colour microbus. An unknown person gave a mobile phone call to the informant and demanded Tk.20,00,000/- as ransom for release of victim Tuhin. On 12.05.2015 bad odour was coming out of the dwelling ghor of accused Billal who claimed that a dead ঢিকা was the cause of above odour and he obstructed entry of anyone into his dwelling ghor. On 12.05.2015 afternoon police brought accused Mahfuzul in the occurrence ghor and at his showing the dead body of victim Tuhin was found inside a drum. She saw the dead body of victim Tuhin whose neck was tied with a gamsa. In cross examination she stated that she cannot recollect the phone number from which ransom was demanded. She denied that no bad odour was coming from the house of accused Billal nor the dead body of victim Tuhin was recovered from his dwelling ghor.

P.W.6 Dr. Md. Asaduzzaman performed post mortem examination jointly with Dr. Sheikh Forhad on 13.05.2015. He stated that on 13.05.2015 he and his colleague Dr. Sheikh Forhad performed post mortem examination of victim Tuhin (7). The witness proved above post mortem report and his

signature and the signature of his colleague Dr. Sheikh Forhad on the same which were marked as Exhibit Nos.5, 5/1 and 5/2 respectively.

He found following injury on the person of victim Tuhin.

“Horizontal continuous ligature mark in the mid throat”

In their opinion the death of victim Tuhin was due to asphyxia as a result of strangulation which was ante mortem and homicidal in nature.

In cross examination he stated that above dead body was in semi decomposed condition. He denied that he did not perform post mortem examination properly but prepared his report on the basis of inquest report.

P.W. 10 Md. Tajul Islam stated that on 12.05.2015 police recovered a two sim usable mobile phone set from the possession of accused Mahfuzul and seized the same in his presence and he gave signature on the same as a witness. The witness proved above seizure list and his signature on the same as well as above seized mobile set which were marked as Exhibit Nos.6, 6/1 and Materials Exhibit No.I respectively. In

cross examination he stated that he could not mention the sim number used in above mobile telephone. He denied that above mobile set was not recovered and seized in his presence.

P.W.11 Md. Ishak Mia stated that on 12.05.2015 police prepared inquest report of the dead body of victim Tuhin in his presence and he gave signature on the same as a witness. The witness proved his signature on the inquest report which was marked as Exhibit Nos.3/2. On 12.05.2015 police brought accused Mahfuzul in the occurrence ghor who confessed before people of the locality that he had murdered victim Tuhim and kept his dead body in a drum. Accused Mahfuzul opened above drum and brought out the dead body of victim Tuhin. A gamsa was tied over the neck of victim Tuhin. In cross examination denied that accused persons did not commit murder of victim Tuhin and he was giving false evidence.

P.W.12 Md. Tanvir Ahammed Sub-Inspector of Police is the investigating officer of this case. He stated that he visited the place of occurrence and prepared sketch map of the same

along with an index thereof, and on 12.05.2015 he prepared inquest report of the dead body of victim Tuhin. The witness proved above sketch map, index and the inquest report and his signatures on above documents which were marked as Exhibit No.9, 10, 7/1, 8/1/, 9/1, 10/1, 3, and 3/1 respectively. He handed over the dead body of victim Tuhin to Constable No.1736 Nazrul Islam for taking for post mortem examination by a challan. The witness proved above challan and his signature on the same which were marked as Exhibit No11 and 11/1 respectively. On 12.05.2015 he seized a green color plastic drum by a seizure list. The witness proved above seizure list and his signature on the same which were marked as Exhibit Nos.2 and 2/2 respectively. On 12.05.2015 he seized a two sim usable octenn mobile phone of Model No.T11 whose sim number were (a) 01718171502 & (b) 01866268331 and IMEI Nos.355111050977240 and 35836605 7843730. He proved above seizure list and his signature on the same which were marked as Exhibit Nos.6 and 6/2 respectively. He recorded statements of prosecution witnesses under section 161 of the Code of Criminal Procedure. In his investigation

offence punishable under section 364/301/201/34 of the Penal Code, 1860 having prima facie proved against accused Mahfuzul and Billal he submitted charge sheet No.153 dated 01.09.2015 against them. In cross examination he stated that on 09.05.2015 accused Mahfuzul took victim Tuhin in his dwelling ghor alluring him to give mango mash when no other person was present in above ghor. He further stated that accused Billal attempted to disappear the dead body of victim Tuhin to protect his son accused Mahfuzul. He denied that he did not perform investigation of this case properly and filed a false charge sheet.

Above is all about the evidence oral and documentary adduced by the prosecution at trial to substantiate the charge levelled against two accused persons namely Md. Mahfuzul Islam and Md. Billal Hossain under sections 302/201/34 of the Penal Code, 1860.

Mr. Sujit Chatterjee learned Deputy Attorney General submits that accused Md. Mahfuzul Islam fled away from the occurrence house immediately after the disappearance of victim Tuhin. He was arrested by police from a different

district on 12.05.2015 and he confessed to have committed murder of victim Tuhin in presence of thousands of people of the locality. Besides he made a confession to a Judicial Magistrate under section 164 of the Code of Criminal Procedure. In above confession accused Mahfuzul has described as to how he committed the murder of a boy of seven years of age and the motive and manner of above murder and where he kept the dead body of victim Tuhin. Pursuant to the showing of accused Mahfuzul the dead body of victim Tuhin was recovered from the dwelling ghor of accused Billal. Above facts have been further proved beyond reasonable doubt by the mutually corroborative evidence of P.W.1 Nasir Uddin, PW.2 Md. Nazim Mia, PW.3 Anowar, PW.4 Hobi, PW.5 Md. Delowar Hossain and P.W.7 Kabir Hossain. P.W.9 Dr. Md. Asaduzzaman has stated the manner of murder of victim Tuhin and the nature of death which corroborates the confession of accused Mahfuzul.

Above prosecution witnesses have further stated in their respective evidence that accused Billal knowingly gave a false information that two unknown persons kidnapped victim

Tuhin boarding a white colour microbus to misled the investigation and to protect his son. Moreover above witnesses have consistently stated that on 12.05.2015 morning bad odour was coming out of the occurrence ghor but accused Billal screened the true cause and falsely stated that dead ঢিকা might be the cause of above odour and obstructed people to search his dwelling ghor. Above evidence clearly show that accused Billal committed an offence punishable under section 201 of the Penal Code, 1860.

Accused Mahfuzul was arrested by tracking his mobile phone which was used for demanding ransom of Tk.20,00,000/- for release of his son. At the showing of accused Mahfuzul the dead body of victim Tuhin was recovered from inside the dwelling ghor of accused Billal. Above facts have been proved by the oral evidence of several prosecution witnesses as well as the seizure list and inquest report.

Since in above dwelling ghor accused Billal also lives he cannot escape the responsibility of murder of victim Tuhin. On consideration of above oral, documentary and

circumstantial evidence the learned Additional Sessions Judge has rightly convicted accuseds Billal and Mahfuzul under sections 302/201/34 of the Penal Code and sentenced them to death which calls for no interference.

Mr. Md. Abu Hanif learned Advocate for convict appellants Md. Mahfuzul Islam and Md. Billal Hossain submits that in this case the only evidence is the confession of accused Mahfuzul made before a judicial Magistrate under section 164 of the Code of Criminal Procedure. But above confession was neither true and nor made voluntarily. Above confession was obtained by physical torture from accused Mahfuzul who was a minor. In the inquest report no visible sign or mark of injury was found on the person of victim Tuhin. In the post mortem report it has been stated that the dead body of victim Tuhin was semi decomposed. As such the true cause of death of victim Tuhin could not be ascertained. P.W.1 Nasir Uddin and accused Billal are full brothers and they live in the same house but in different ghors. The informant himself has stated in his evidence as P.W.1 that at the time of murder of victim Tuhin the mother of accused

Mahfuzul and wife of accused Billal was not present in the occurrence house. P.W.12 investigating officer Md. Tanvir Ahammed has stated in cross examination that when accused Mahfuzul took Tuhin in the occurrence ghor no other person was present in the ghor. In his confession under section 164 of the Code of Criminal Procedure accused Mahfuzul did not mention that accused Billal had any role in the commission of murder or hiding of the dead body of victim Tuhin. Accused Mahfuzul did not share the occurrence of murder with his father accused Billal. There is nothing on record to show that accused Billal made any endeavor to destroy or conceal or disappear any evidence. Accused Billal himself did not make any confession.

The prosecution could not prove beyond reasonable doubt that accused Billal and Mahfuzul committed murder of victim Tuhin but the learned Additional Sessions Judge failed to appreciate above evidence on record properly and most illegally convicted Md. Mahfuzul Isam and Md. Billal Hossain under section 302/201/34 of the Penal Code which is not tenable in law.

Ms. Hasna Begum, State appointed learned Lawyer for Jail Appeal No.63 of 2018 of convict Md. Mahfuzul Islam submits that P.W.1 Nasir Uddin stated in the ejahar that the age of accused Mahfuzul was 17 (seventeen) years. The investigating officer mentioned the age of accused Mahfuzul as 17 (seventeen) and he was sent to the Child Rehabilitation Centre instead of jail. But in the charge sheet dated 01.09.2015 P.W.12 Tanvir most illegally mentioned that the age of accused Mahfuzul was 20 (twenty) years. In support of above claim the investigating officer produced a birth certificate of accused Mahfuzul which was created after three months of the occurrence. Above birth certificate was not proved at trial. Since the prosecution documents show that at the time of murder of victim Tuhin accused Mahfuzul was a minor the trial of above accused should have been held in a Shishu Adalat but he was unlawfully tried jointly with his father accused Billal and sentenced to death in violation of the provisions of section 33 and 34 of the Shishu Ain, 2013. As such the impugned judgment and order of conviction and sentence as far as the same relates to accused Mahfuzul is

liable to be set aside and he is entitled to be acquitted of the charge leveled against him under section 302/201 and 34 of the Penal Code, 1860.

Ms. Nazmun Nahar, State appointed learned Advocate for convict appellant Md. Billal Hossain for Jail Appeal No.75 of 2018 submits that the learned Additional Session Judge passed the impugned judgment and order of conviction and sentence on the basis of confession of co-accused Mahfuzul. In the above confession co-accused Mahfuzul did not mention the name of co-accused Billal let alone implicate him in the murder of victim Tuhin. In this case there is no eye witness who saw the occurrence of murder of victim Tuhin. Accused Billal did not make any confession under section 164 of the Code of Criminal Procedure. As such the impugned judgment and order of conviction and sentence under section 302 of the Penal Code as far as the same relates to accused Billal is based on legal evidence at all. As far as conviction and sentence of accused Billal under section 201 of the Penal Code is concerned there is no specific case of disappearing evidence or providing false information about the alleged occurrence of

murder. But the learned Additional Sessions Judge failed to appreciate above materials on record rightly and most illegally convicted accused Billal under section 302/201/34 of the Penal Code which is not tenable in law.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

This is a case of brutal and tragic murder of an innocent minor boy of 07 (seven) years of age namely Maksudul Islam Tuhin who was a student of class two of the Brac School. P.W.1 kazi Md. Nasir Uddin is the informant of this case and father of above victim. In his evidence as P.W.1 he has stated that accused Billal was his full brother and accused Mahfuzul was the son of accused Billal. They live in the same house in separate ghors. Victim Tuhin was missing since 09.05.2015 morning and on 12.05.2015 afternoon his dead body was recovered from the dwelling ghor of accused Billal at the showing and opening of a covered drum by accused Mahfuzul. P.W.12 Md. Tanvir stated that he arrested accused Mahfuzul on 12.05.2015 at 4.00 PM and at his showing

recovered the dead body of victim Tuhin at 8.35 PM. P.W.2 Nazim, P.W.3 Anwar, P.W.4 Hobi, P.W.5 Delwar, P.W.7 Kabir, P.W.8 Jahanara and P.W.11 Ishak Mia have stated in their respective evidence that P.W.12 Tanvir brought accused Mahfuzul in their dwelling ghor on 12.05.2015 afternoon who in their presence opened the cover of a plastic drum revealing the dead body of victim Tuhin whose neck was covered with a gamsa. Above evidence of P.Ws.1 Nasir, P.W.2 Nizam, P.W. 3 Anowar, P.W.4 Hobi, P.W.5 Delowar, P.W. 7 Kabir, 8, and P.W.11 Ishak Mia and P.W.12 Tanvir were consistent and mutually corroborative and despite extensive cross examination by the defence their above evidence remained unshaken and credence inspiring.

P.W.3 Anowar and P.W.10 Md. Taijul Islam are two witnesses to the seizure of above drum inside which the dead body of victim Tuhin was found. Both above witnesses have consistently stated that the dead body of victim Tuhin was kept inside above covered plastic drum in the dwelling ghor of accused Billal and the dead body of victim Tuhin was

recovered at the showing and opening of above drum by accused Mahfuzul.

P.W.12 Tanvir prepared the inquest report of the dead body of victim Tuhin which was witnessed by P.W.4 Hobbi and P.W.11 Md. Ishak Mia. In above inquest report no visible mark was found on the person of victim Tuhin but his lips were black and part of the tongue was outside of the mouth and pressed by teeth. Above prosecution witnesses were not cross examined as to their above evidence about above inquest report.

The post mortem of the dead body of victim Tuhin was held jointly by P.W.9 Dr. Md. Asaduzzaman and Dr. Sheikh Forhad. As P.W.9 Dr. Md. Asaduzzaman stated that in the mid throat of victim Tuhin they found a horizontal continuous ligature mark. In their opinion the cause of death of above victim was asphyxia as a result of strangulation which was ante mortem and homicidal in nature. P.W.9 Dr. Md. Asaduzzaman and P.W.12 Md. Tanvir Ahammed were cross examined by the defence but their above evidence remained consistent, credence inspiring and unshaken.

On consideration of above oral evidence of competent witnesses and documentary evidences namely the inquest report, post mortem report and seizure lists we hold that the prosecution has succeeded to prove beyond reasonable doubt that victim Tuhin was murdered by strangulation and his dead body was kept inside a covered plastic drum in the dwelling ghor of accused Billal which was revealed and retrieved at the showing of accused Mahfuzul beyond reasonable doubt.

Since the dead body of victim Tuhin was recovered from the dwelling ghor of accused Billal he and other members of his family who lived in above ghor falls within reasonable suspicion that all or any of them either committed above murder or had knowledge as to how victim Tuhin was murdered or how above dead body was kept into a drum in their dwelling ghor.

P.W.1 Nasir Uddin stated that besides accused Billal his son accused Mahfuzul and wife used to live in above ghor but the wife of accused Billal was not present in above ghor on the day of occurrence P.W.6 Judicial Magistrate Saiduzzaman

stated that while making confession to him accused Mahfuzul did not mention the name of any other person as an accomplice. The investigating officer of this case P.W.12 Tanvir stated in cross examination that when accused Mahfuzul brought victim Tuhin into the occurrence ghor for commission of murder no other person was present in the occurrence ghor. Above evidence of P.W.1 Nasir Uddin, P.W.6 Saiduzzaman and P.W.12 Tanvir excludes accused Billal and his wife from the list of suspects who committed murder of victim Tuhin.

In this case there was no eye witness who saw the commission of murder of victim Tuhin and kept his dead body in a plastic drum in the dwelling ghor of accused Billal. Accused Billal did not make any confession under section 164 of the Code of Criminal Procedure involving himself in any way with the commission of above murder of victim Tuhin or hiding his dead body.

Accused Mahfuzul made a confession to P.W.6 Saiduzzaman Sharif a judicial Magistrate on 13.05.2015. P.W.6 Saiduzzaman stated that accused Mahfuzul was produced

before him at 10.30 PM on 13.05.2015 and he started to record his confession after giving him three hours time for refreshment of memory in compliance with the provisions of section 364 of the Code of Criminal Procedure. As mentioned above accused Mahfuzul was arrested by police on 12.05.2015 at 4.00 PM and he made above confession at 1.30 PM on 13.05.2015 that is within 24 (twenty four) hours of his arrest by police. Accused Mahfuzul was never taken to police remand for interrogation. P.W.6 Saiduzzaman was cross examined by the defense but no material contraction emerged in his evidence. No suggestion was put to above witness that accused Mahfuzul was subjected to physical torture or he did not make above confession voluntarily. On consideration of above evidence on record we are of the view that the confession of accused Mahfuzul was made voluntarily.

Now let us examine above confession of accused Mahfuzul Islam in comprisation with other legal evidence on record, oral, documentary and circumstantial to determine if above confession was true.

In above confession of accused Mahfuzul has stated that victim Tuhin a minor boy of 7 (seven) years was his cousin brother and his family and the family of above victim Tuhin lived side by side in the separate ghors in the same house. P.W.1 Nasir Uddin has corroborated above part of the confession by his evidence in court as mentioned above.

As far as his motive for murder of victim Tuhin is concerned accused Mahfuzul mentioned in above confession that although his father was elder by age but the informant did not have any respect for his father and over a trivial the informant struck bamboo stick blows on his father. P.W.12 Tanvir on conclusion of investigation found truth in above claims of accused Mahfuzul and made a detailed mention in the charge sheet.

Accused Mahfuzul further confessed that he allured victim Tuhin with mango mash and took him to his dwelling ghor when windows and back door of above ghor were closed and no other person was present in above ghor. Above part of the confession has been corroborated by the evidence of P.W.12 Tanvir who mentioned that on 09.05.2015 the date of

occurrence no other person was present in the occurrence ghor. In this regard P.W.1 Nasir Uddin stated that on the date of occurrence of murder of victim Tuhin the mother of accused Mahfuzul was not present in the occurrence ghor.

As to the manner of murder of victim Tuhin accused Mahfuzul confessed that he murdered victim Tuhin by pressing his neck with his two hands and to confirm his death tied a gamsa around his neck. Above part of the confession has been corroborated by the evidence of P.W.9 Dr. Md. Asaduzzaman, the post mortem report (Exhibit No.5), the inquest report and evidence of P.W.12 Tanvir.

In the inquest report mention has been made that the neck of victim Tuhin was tied with a gamsa. His tongue was outside of the mouth and pressed with teeth. Above gamsa was identified in the court room by P.W.3 Anwar. P.W.8 Most. Jahanara, P.W.3 Anwar, P.W.7 Kabir and P.W.11 Ishak Mia saw the dead body of victim Tuhin and found his neck was tied by a gamsa. In the post mortem report a ligature mark was found over the neck of victim Tuhin and the cause

of his death was aspextia which was ante mortem and homicidal in nature.

As far as the disposal of the dead body of victim Tuhin is concerned in above confession accused Mahfuzul stated that he kept the dead body of victim Tuhin into a plastic drum in his dwelling ghor. As mentioned above P.W.12 Tanvir, P.W.1 Kazi Nasir Uddin, P.W.2 Nazim Mia, P.W.3 Anowar, P.W.4 Hobi, P.W.5 Md. Delowar Hossain P.W.7 Md. Kabor Hossain and P.W.8 Jahanara have consistently stated in their respective evidence that in their presence accused Mahfuzul opened a plastic drum in their dwelling ghor and reveled the dead body of victim Tuhin. As such above part of the confession has been supported by above legal evidence.

As far as the demand of ransom of Tk.20,00,000/- is concerned in above confession accused Mahfuzul has confessed to have collected a mobile phone set from his friend, purchased a new SIM card from Koiabazar and used above mobile phone for demanding ransom of Tk.20,00,000/- to P.W.1 Nasir Uddin for release of victim Tuhin. He repeatedly demanded above ransom, changed his location from Sheiker

Chor to Aglapara of Narsingdi and falsely told P.W.1 Nasir that he had also kidnapped accused Mohfuzul. Above part of the confession has been proved by the consistent evidence of P.W.1 Nasir, P.W.10 Taijul and P.W.12 Tanvir and above mentioned mobile phone set and SIM Card were which recovered from the possession of accused Mahfuzul as mentioned above.

On consideration of above oral evidence of competent witnesses and documentary and circumstantial evidences we hold that the prosecution has succeeded to prove beyond reasonable doubt that the confession made by accused Mahfuzul to P.W.6 Saiduzzman on 13.05.2015 was true.

It is well settled that an order of conviction and sentence could be lawfully recorded against an accused on the basis of his confession if the same was proved to be made voluntarily and true. We have found that the confession of accused Mahfuzul Islam given on 13.05.2015 was made voluntarily and the same was true, as such, the learned Additional Session Judge has lawfully and rightly passed the impugned judgment and order of conviction against accused Mahfuzul

Islam under section 302 of the Penal code, 1860 on the basis of above confession and other evidence on record which calls for no interference.

As far as accused Billal is concerned in above confession accused Mahfuzul did not mention anything as to the complicity of his father accused Billal in the commission of murder of victim Tuhin. As mentioned above P.W.12 Tanvir stated in the charge sheet and in this evidence in court that at the time of murder of victim Tuhin no other person was present in the occurrence ghor. Accused Billal did not make any confession. There is no other legal evidence on record oral or documentary, proving the complicity of accused Billal in the murder of victim Tuhin. As such we hold that the impugned judgment and order of conviction and sentence passed against accused Billal under section 302 of the Penal Code is without any lawful basis and not tenable in law.

Accused Billal has been further convicted under section 201 of the Penal Code, 1860 for disappearing evidence of above murder and for giving false information knowingly to screen his son accused Mahfuzul Islam. It has been proved that

accused Mahfuzul Islam concealed the dead body of victim Tuhin in a plastic drum in their dwelling ghor and above dead body was recovered from above plastic drum and from the same location at the showing of accused Mahfuzul in presence of P.W.12 Tanvir and P.W.1 Nasir, P.W.2 Nazim, P.W.3 Anowar and P.W.8 Jahanara. The gamsa used to confirm the death of victim Tuhin was also recovered from the neck of above dead body. The drum in which above dead body was kept was also seized. As such no occurrence of causing any evidence of above murder to disappear took place at all. As far as giving of false information knowingly as to the above offence is concerned there is no evidence on record to show that accused Billal had any knowledge as to the murder of victim Tuhin or keeping of his dead body in a drum. In above confession accused Mahfuzul has stated that after commission of above murder he left the occurrence home and went to the houses of his friends and classmates in other district. He did not share anything about the above murder of victim Tuhin to anyone including accused Billal. He was arrested by P.W.12 Tanvir from the house of his friend in the district of Narsingdi.

In the absence of any evidence that accused Billal had any knowledge about the murder of victim Tuhin or keeping his dead body inside a drum in his dwelling ghor there was no lawful basis of conviction of accused Billal under section 201 of the Penal Code, 1860.

As far as the conviction and sentence of accused Mahfuzul under section 201 of the Penal Code, 1860 is concerned the same was misconceived and in contravention of the provision of section 71 of the Penal Code, 1860 and tenable in law.

In above view of materials on record we hold that the conviction and sentence recorded by the learned Additional Session Judge against accused Billal and accused Mahfuzul under section 201 of the Penal Code, 1860 is without any lawful basis and liable to be set aside.

Ms. Hasna Begum the learned Advocate for the accused Mahfuzul raised an objection against his joint trial with accused Billal treating him as an adult and awarding of the sentence of death on the ground that the FIR and other documents of the prosecution prove that on the date of the

murder of victim Tuhin accused Mahfuzul was a minor boy of 17 years of age. The learned Advocate for accused Mahfuzul lastly submits that the ends of justice demands the setting aside of the sentence of death and pass an appropriate sentence in accordance with the provision of sections 33 and 34 of the Shishu Ain, 2013.

In this regard the learned Deputy Attorney General submits that initially and erroneously it was held that on the date of occurrence accused Mahfuzul was a minor and his age was 17 years. But the investigation officer found that the date of birth of accused Mahfuzul was 07.06.1995 and on the date of the occurrence his age was about 20 years. On the basis of above findings as to the age of accused Mahfuzul he was rightly held to be an adult and tried jointly with co-accused Billal and sentenced to death which calls for no interference. The learned Deputy Attorney General lastly submits that the contentious factual question of age of accused Mahfuzul having not been raised at trial the defence cannot raise above issue at the time of hearing of the appeal.

The Shishu Ain, 2013 came into force on 20 June, 2013 which provides a bunch of privileged provisions as to the investigation, trial and sentence of a child in conflict with law. Any person below 18 years of age has been designated as a child and the relevant date of above age is the age on the date of commission of the offence. The murder of victim Tuhin took place on 09.05.2015. As such the Shishu Ain, 2013 was applicable in this case and the age of accused Mahfuzul on 09.05.2015 was relevant to determine if he was a child or not.

Accused Mahfuzul was treated as an adult and he was investigated and tried jointly with his father accused Billal. The defence did not raise any objection against above joint trial of accused Mahfuzul nor made any claim that accused Mahfuzul was a minor on 09.05.2015.

The question whether an objection that an accused was a minor could be raised for the first time at appeal is concerned it is well settled that an appeal is a continuation of the trial proceedings and section 428 of the Code of Criminal Procedure provides for recording of additional evidence, if considered necessary, by a court of appeal.

In this case the defence did not seek to adduce additional evidence to prove that on 09.05.2015 the age of accused Mahfuzul was below 18 years. The defence relies on the undisputed documents of the prosecution to establish that on 09.05.2015 the age of accused Mahfuzul was 17 years. Now let us examine above documents of the prosecution which are available in the paper book and in the Lower Court Record whether accused Mahfuzul was a minor on 09.05.2015 the date of murder of victim Tuhin or not.

The FIR of this case was lodged on 12.05.2015 by P.W.1 Nasir Uddin the uncle of accused Mahfuzul who resided in the same house with the accuseds. In above ejahar the age of accused Mahfuzul has been mentioned to be 17 years. After the arrest of accused Mahfuzul on 12.05.2015 he was produced to P.W.6 Saiduzzaman for recording his confession under section 164 of the Code of Criminal Procedure. In above forwarding report the Investigating officer stated that the age of accused Mahfuzul was 17 years. P.W.6 Saiduzzaman the Judicial Magistrate mentioned in the printed confession form on 13.05.2015 that the age of accused Mahfuzul was 17 years.

In his above confession accused Mahfuzul stated that he was a student of Madrasha.

It turns out from Memo No.410133000091823714/635 dated 13.08.2016 of the Superintendent of Juvenile Development Centre, Tongi, Gazipur that accused Mahfuzul was sent to above Centre on 13.05.2015 stating that his age was 17 years. On 13.08.2016 accused Mahfuzul attained majority and on the request of above Superintendent the learned Trial Judge transferred accused Mahfuzul to the District Jail of Narayangonj from above juvenile centre. Above documents prove that the informant, the investigation officer, judicial magistrate and the learned Trial Judge accepted that on 12.05.2015 accused Mahfuzul was a minor of 17 years of age.

It is true that the investigating officer submitted one charge sheet on 01.09.2015 against both accuseds Mahfuzul Islam and his father Billal mentioning that the age of Mahfuzul Islam was 20 years. On receipt of above charge sheet the learned Additional Sessions Judge directed P.W.12 Tanvir to appear before him personally and explain as to how he could mention on 01.09.2015 that the age of accused

Mahfuzul Islam was 20 years when on 13.05.2015 he stated in the forwarding report that the age of above accused Mahfuzul was 17 years. On 05.04.2017 P.W.12 Tanvir in reply to above show cause notice submitted a birth certificate of accused Mahfuzul showing that the date of birth of accused Mahfuzul was 07.06.1995 and on the date of occurrence his age was above 19 years. The learned Additional Sessions Judge accepted above birth certificate of Mahfuzul and exonerated P.W.12 Tanvir.

It turns out from above unexhibited birth certificate that the same was issued by the Chairman of Fatepur Union Porishad on 11.08.2015 after three months of the murder of victim Tuhin. Above document was not produced at trial nor the same was subjected to cross examination by defence.

On consideration of above materials on record we are constrained to hold that on 09.05.2015 the date of murder of victim Tuhin the age of accused Mahfuzul Islam was 17 years and he was a minor and the investigation, trial, custody and sentence of accused Mahfuzul were required to be done in accordance with the provisions of Shishu Ain, 2013. But the

learned Additional sessions Judge committed serious error in accepting that accused Mahfuzul was an adult person on 09.05.2015 and conducted his trial jointly with co-accused Billal Hossain and passed the sentence of death in contravention of the provision of the Shishu Ain, 2013.

The learned Advocates for the defence as well as the learned Deputy Attorney General submitted that the ends of justice will not be met by setting aside the impugned judgment and passing an order for separate trial of accused Mahfuzul in accordance with the provisions of Shishu Ain, 2013 since the above accused Mahfuzul has already served out 8 (eight) years in prison including 06 years in the Death cell. The ends of justice will be met if the sentence passed against accused Mahfuzul is modified in accordance with the provision of the Shishu Ain.2013.

A shishu Adalat is constituted under section 16 of Shishu Ain, 2013 and an Additional Session Judge has been designated as the Judge of the Shishu Adalat subject to Publication of a government gazette after consultation with the with the Supreme Court of Bangladesh. Section 26 of Nari-

O-Shishu Nirjatan Daman Ain, 2000 provides that an Additional Sessions Judge can also be appointed as a Judge of above Tribunal. The trial of this case was conducted by an Additional Sessions Judge who had legal competence to be a Judge of the Shishu Adalat constituted under the Shishu Ain, 2013.

We have already found that the order of conviction recorded by the learned Additional Sessions Judge against the child in conflict with law Mahfuzul under section 302 of the Penal Code, 1860 was based on legal evidence and calls for no interference.

The learned Advocates for accused Mahfuzul as well as the learned Deputy Attorney General rightly pointed out that it will be beneficial to above Mahfuzul and the ends of justice will be met if the sentence of death is set aside and an appropriate sentence is awarded against above Mahfuzul in accordance with section 34 sub-section (1) of the Shishu Ain, 2013 for commission of murder of victim Tuhin. The provision of sentence 34(1) of the শিশু আইন, ২০১৩ is reproduced blow:

কোন শিশু মৃত্যুদণ্ড বা যাবজ্জীবন কারাদণ্ডে দণ্ডনীয় কোন অপরাধে দোষী প্রমাণিত হইলে শিশু-আদালত তাহাকে অনূর্ধ্ব ১০ (দশ) বৎসর এবং অনূন্য ৩ (তিন) বৎসর মেয়াদে আটকাদেশ প্রদান করিয়া শিশু উন্নয়ন কেন্দ্রে আটক রাখিবার জন্য আদেশ প্রদান করিতে পারিবে:

তর্বে শর্ত থাকে যে, কোন শিশু মৃত্যুদণ্ড বা যাবজ্জীবন কারাদণ্ডে দণ্ডনীয় নয় এমন কোন অপরাধে দোষী প্রমাণিত হইলে শিশু-আদালত তাহাকে অনধিক ৩ (তিন) বৎসর মেয়াদে আটকাদেশ প্রদান করিয়া শিশু উন্নয়ন কেন্দ্রে আটক রাখিবার জন্য আদেশ প্রদান করিতে পারিবে।

In above view of the facts and circumstances of the case and submissions of the learned Advocates for respective parties we hold that the ends of justice will be met if the sentence of death recorded by the learned Additional Session Judge against above Mahfuzul under section 302 of the Penal Code, 1860 is modified in the light of above provision of the Shishu Ain, 2013.

In the result, Death Reference No.10 of 2018 is rejected, Criminal Appeal No.2770 of 2018 is allowed in part, Jail Appeal No.75 of 2018 is allowed and Jail Appeal No.63 of 2018 is allowed in part.

The impugned judgment and order of conviction dated 29.01.2018 passed against the child in conflict with law Md.

Mahfuzul Islam by the learned Additional Sessions Judge, 1st Court, Narayangonj in Sessions Case No.1750 of 2015 under section 302 of the Penal Code, 1860 arising out of Araihaazar Police Station Case No.15(5) 2015 corresponding to G. R. Case No.73 of 2015 is upheld but his sentence is reduced to imprisonment for 10 (ten) years in accordance with the provision of sections 34 of the Shishu Ain, 2013. The impugned judgment and order of conviction and sentence dated 29.01.2018 passed by the learned Additional Sessions Judge, 1st Court, Narayangonj against accused Md. Billal Hossain in Sessions Case No.1750 of 2015 under sections 302/201/34 of the Penal Code arising out of Araihaazar Police Station Case No.15(5) 2015 corresponding to G. R. Case No.73 of 2015 is set aside and above accused is acquitted of above charges.

Let accused Md. Billal Hossain be set at liberty at once if he is not wanted in connection with any other case.

Let the lower court's record along with a copy of this judgment be transmitted down at once.

Md. Ali Reza, J:

I agree.

Md. Kamrul Islam
Assistant Bench Officer